



File No.: EXP202310540

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, and noting indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202212191. In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to LEADDESK, S.L. with NIF B88511092, requesting that it send to this Agency the information and documentation indicated. This request for information was not answered within the deadline by LEADDESK, S.L. The complaint was admitted for processing on January 25, 2023.

SECOND: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD. In the context of the investigative actions, a request for information was sent to LEADDESK, S.L., registered out on March 30, 2023, related to the complaint indicated in the first section, requesting that within ten working days it present to this Agency the information and documentation specified therein. Additionally, another request was sent, reiterating the previous one, which was registered out on May 11, 2023.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by LEADDESK, S.L. on April 12, 2023, and May 25, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, LEADDESK, S.L. has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On July 17, 2023, within the framework of file number EXP202212191, the Director of the Spanish Agency for Data Protection agreed to proceed with the filing of actions without having been able to determine the responsibility of LEADDESK, S.L., since this entity has not responded to the two requests for information sent by this Agency. This Resolution, which was notified electronically, was not collected by LEADDESK, S.L. within the availability period, being understood as carried out in accordance with the provisions of Article 43.2 of the LPACAP on July 28, 2023, as evidenced by the certificate in the file.

SIXTH: LEADDESK, S.L. was sanctioned by resolution of the Director of this Agency on April 3, 2023, in file EXP202302415, for facts different from those motivating the present procedure, but for the same infringing conduct of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, which is now attributed to it again. The resolution of that sanctioning procedure is final and enforceable.

SEVENTH: On September 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against LEADDESK, S.L., for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR.

EIGHTH: The agreement to initiate the present sanctioning procedure was notified in accordance with the rules established in the LPACAP through electronic notification, not being collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, and therefore understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on September 26, 2023.

NINTH: The aforementioned initiation agreement was notified and the period granted for the

formulation of allegations has elapsed, and it has been confirmed that no allegations have been received from LEADDESK, S.L. Article 64.2.f) of the LPACAP -provision of which LEADDESK, S.L. was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the imputation was specified, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that LEADDESK, S.L. has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

TENTH: According to the report obtained from the AXESOR tool, the entity LEADDESK, S.L. is an SME (Microenterprise), established in 2019, with a turnover of 296,619 euros in 2020. In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

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PROVEN FACTS

FIRST: The information requests indicated in the first, second, and third backgrounds were notified to LEADDESK, S.L. in accordance with the provisions of the LPACAP and as evidenced by the acknowledgments of receipt in the file.

SECOND: LEADDESK, S.L. has not responded to the information requests made by the Agency within the time limits granted for this purpose.

THIRD: The notification of the agreement to initiate the present sanctioning procedure, which was carried out electronically in accordance with the rules established in the LPACAP, was not collected by LEADDESK, S.L. within the availability period, as evidenced by the acknowledgment of receipt in the file, being understood as carried out in accordance with Articles 43.2 and 41.5 of the LPACAP.

FOURTH: LEADDESK, S.L. has not submitted allegations to the agreement to initiate this sanctioning procedure within the time limit indicated for this purpose.

FIFTH: LEADDESK, S.L. has a prior infringement sanctioned by a firm and enforceable resolution in file EXP202302415, for infringement of the same article that is currently being imputed to it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

According to the available evidence, it is considered that LEADDESK, S.L. has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of LEADDESK, S.L., the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to LEADDESK, S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller

or the processor, to provide any information required for the performance of its functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and to all information necessary for the exercise of its functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

III

Classification and Qualification of the Infringement

According to the available evidence, the facts presented are considered to constitute an infringement attributable to LEADDESK, S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an undertaking, an amount equivalent to four percent (4%) of the total annual global turnover of the preceding financial year, opting for the higher amount. For the purposes of the statute of limitations for infringements, the imputed infringement prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

IV

Imputed Sanction

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The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

It is noted that no mitigating factors apply, and the following facts have been considered as aggravating:

- Art. 83.2 e) GDPR: any previous infringement committed by the data controller or the data processor.

On April 3, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in sanctioning procedure number EXP202302415, followed against LEADDESK, S.L., for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR. This resolution is final and enforceable. The sanctioned infringement is of the utmost relevance as an aggravating factor due to its proximity in time and because it concerns the same infringement that is now being re-imputed.

In light of the facts presented, it is considered appropriate to impose a sanction on LEADDESK, S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 4,000.00 euros.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on LEADDESK, S.L., with NIF B88511092, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 4,000.00 euros (FOUR THOUSAND

euros).

SECOND: TO ORDER LEADDESK, S.L., with NIF B88511092, that, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the information requested in the requests made within the framework of the proceedings numbered EXP202212191, to which reference has been made in the background of this resolution, be provided within ten working days.

It is warned that failure to comply with the requests of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

THIRD: TO NOTIFY this resolution to LEADDESK, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of the

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Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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